What Is a PWN?

A Plain-Language Guide to Prior Written Notice

You may have received a document from your child's school called a Prior Written Notice, or PWN. It might have arrived before a meeting, after a meeting, or in response to something you requested. Most parents aren't sure what it is or what to do with it. This guide breaks it down.

A Prior Written Notice is a written document the school is required to send you any time it proposes or refuses to take action related to your child's education. It is one of your most important rights under IDEA and one of the most overlooked.

WHEN MUST THE SCHOOL SEND ONE?

THE SCHOOL MUST PROVIDE A PWN WHEN IT:

- Proposes to evaluate or reevaluate your child
- Proposes a change to your child's eligibility, placement, or services
- Proposes changes to your child's IEP
- Refuses a request you have made - for an evaluation, a service, a placement change, or anything else related to your child's education

WHAT MUST IT INCLUDE?

A PWN IS NOT JUST A NOTIFICATION - IT MUST CONTAIN SPECIFIC INFORMATION, INCLUDING:

- A description of the action the school is proposing or refusing
- An explanation of why the school is proposing or refusing that action
- A description of any other options the school considered and why they were rejected
- A description of the evaluations, assessments, or records used to make the decision
- Sources of support available to help you understand your rights

WHAT SHOULD YOU DO WHEN YOU RECEIVE ONE?

- Read it carefully
- Make sure it accurately reflects what was discussed or decided
- Note whether the school's reasoning makes sense based on your child's needs
- If you disagree with the proposed action or the refusal, you do not have to accept it
- Keep every PWN you receive in your child's file

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What It Might Be Called

This document may not always be labeled "PWN." Depending on your state or district, it might be called a Conference Summary, Conference Recommendations, Notice of Proposed or Refused Action, Written Notice, or simply a letter from the school. Any written communication from the school describing a proposed or refused action related to your child's education is functioning as a PWN.

Why Does It Matter?

The PWN creates a paper trail. It documents what the school proposed or refused, and why. If you ever need to dispute a decision, the PWN is one of the first documents that will be reviewed. It also tells you exactly where the school stands - which gives you the information you need to decide your next step.

What If You Haven't Received One But Should Have?

If the school has proposed or refused an action related to your child's education and you have not received a PWN, you can request one in writing. The school is required to provide it.

A Note on Timing

The school must provide a PWN before implementing any proposed action - not after. If you receive a PWN after a change has already been made, that is a procedural violation worth noting.